

From the Brussels Effect to the Mar-a-Lago Effect? : AI Governance in the UK¹

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1. Introduction: the UK, between the EU and the US

Global AI governance is in flux³. Only a year ago, on 12 July 2024, the EU seemed to be leading the world in regulating AI, as their comprehensive, prescriptive, and risk-based instrument, the Artificial Intelligence Act (AIA), was published in the Official Journal of the EU. It was widely anticipated that like the General Data Protection Regulation (GDPR) before it, the EU AIA would become a “gold standard” for other countries seeking to mitigate the harms of AI by instigating a “race to the top” by transnational AI companies seeking to obey one set of rules throughout their various markets of operation : another soft power victory for the EU and the mythos of the “Brussels Effect⁴”.

A year later, instead, things are volatile and unclear. The US, after the re-election of Donald Trump, has revoked the Biden/Harris Executive Order (EO) for “Safe, Secure and Trustworthy Development and Use of AI” and replaced it with a new EO for “Removing Barriers to American Leadership in AI”⁵; the US AI Safety Institute (AIS) has been rebranded as the Center for AI Standards and Innovation with an almost completely opposite mission⁶, and a temporary moratorium was placed on state AI laws which may become permanent for at least ten years⁷. In the EU, the direction of AI regulation has possibly stalled; with the AI Liability Directive abandoned, a project for “omnibus” simplification of laws including the GDPR gathering steam⁸, and a possible pause on implementation of the AIA on the negotiating table⁹. By contrast however, Korea has just unveiled its AI Basic Act which has strong resemblances to

¹ This is very much still a work in progress. I express my sincere thanks to the ENS Fellows who workshopped it at EU University Viadrina in July 2025 and especially to Phillip Hacker for his kind invitation. My thanks also to the [CeLPU-SNU] Hawaii International Conference, July 1 2025 who asked me to speak on UK AI governance.

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³ For an up-to-date comparative taxonomy of the global landscape of AI regulation, see S. Alanoca et al “Comparing Apples to Oranges: A Taxonomy for Navigating the Global Landscape of AI Regulation”, 19 May 2025, arXiv:2505.13673. For the leading tracker on global AI regulation, see OECD “National AI policies & strategies” at <https://oecd.ai/en/dashboards/overview>.

⁴ Anu Bradford *The Brussels Effect: How the European Union Rules the World* (OUP, 2020).

⁵ Executive Order (EO) 14179, signed January 23 2025.

⁶ TechCrunch “US removes ‘safety’ from AI Safety Institute”, June 4 2025 at <https://www.theverge.com/ai-artificial-intelligence/679852/trump-ai-safety-institute-name-mission-change>.

⁷ See FT “Big Tech pushes for 10-year ban on US states regulating AI”, June 18 2025 at <https://www.ft.com/content/52ae52f1-531e-462f-898f-e9f86b3b1869>.

⁸ Directorate-General for Communication “Simplification measures to save EU businesses €400 million annually”, 21 May 2025 at https://commission.europa.eu/news-and-media/news/simplification-measures-save-eu-businesses-eu400-million-annually-2025-05-21_en.

⁹ See “The European Commission considers pause on AI Act’s entry into application”, DLA Piper, 2 June 2024 at <https://www.dlapiper.com/en-gb/insights/publications/ai-outlook/2025/the-european-commission-considers-pause-on-ai-act-entry-into-application>.

the EU model¹⁰; and China, a remaining stronghold of mandatory command-and-control AI laws, has continued to strenuously enforce its own suite of laws and launched from component parts its own version of an AISI¹¹.

The EU AI Act represents the extreme end of one AI governance paradigm: certain, participative, democratic, designed to honour human rights and fundamental values. The US now seems to represent the polar opposite: “America-first”, unpredictably changeable at executive fiat, aimed not at protecting the victims of AI harms and discrimination, but at bolstering the US’s dominant big tech sector¹². If the EU’s “Brussels Effect” attempted to extend and create “trustworthy AI” as a model for the world, a “race to the top”, the Trump regime’s “Mar-a-Lago” effect is arguably to intended to exert a deregulation incentive to not only US Big Tech but the rest of the world – a race to the bottom and beyond¹³. All of these comparisons can of course be challenged. The AIA process was also subject to regulatory capture by big tech, the human rights element has been challenged as window dressing, and much of its core message is unclear until technical standards and codes of practice (also potentially captured) are made to assess high-risk systems and general purpose AI. Nonetheless the broad thrust of the distinction remains useful.

Where does the UK stand in this world? The UK has always, now more than ever, seen itself as standing politically between the US and the EU, between a tendency towards laissez-faire market-driven solutions and a liberal historic concern for human rights and public values, as seen, eg, in the domestication of the European Convention of Human Rights (ECHR) in the Human Rights Act 1998, and for public bodies, the established jurisprudence of judicial review.

Perhaps surprisingly then, to date, the UK has, even when Biden/Harris were veering in the direction of mandatory executive action, deliberately opted for a no-regulation model. The UK has passed no new overarching AI legislation, designated no “AI risk levels” with attendant statutory obligations, appointed no central AI regulator, ombudsman or Office, and assigned no specific post-market surveillance or monitoring regime. Instead, it has to date relied on existing pre-AI laws and regulators, guided by cross-cutting non-statutory principles¹⁴. The most

¹⁰ “Act on the Development of Artificial Intelligence and Establishment of Trust”, intended to take effect on January 22, 2026. Cf however for the East Asian region, Japan’s new AI “law” which does not contain any measures significantly sanctioning harms, merely takes a rather UK-like “pro-innovation” approach and establishes an AISI (AI Promotion Bill 2025).

¹¹ The China AI Safety and Development Association (CnAISDA) . See <https://carnegieendowment.org/research/2025/06/how-some-of-chinas-top-ai-thinkers-built-their-own-ai-safety-institute?lang=en> . See on general regulation of AI laws against China’s tech sectors, interestingly Z Yang “Why the Chinese government is sparing AI from harsh regulations—for now”, *MIT Technology Review*, April 9 2024 at <https://www.technologyreview.com/2024/04/09/1091004/china-tech-regulation-harsh-zhang/> .

¹² See interestingly, F Lancieri, L Edelson, and S Bechtold “AI Regulation: The Politics of Fragmentation and Regulatory Capture”, Georgetown University Law Center Research Paper No. 2025/05, 31 January 2025, at https://papers.ssrn.com/sol3/papers.cfm?abstract_id=5049259 asserting a Brussels Effect is now unlikely and an AI splinternet will result from Trump’s interventions.

¹³ See n 5 supra - the name of Trump’s EO “Removing Barriers to American Leadership in Artificial Intelligence” says it all. The ideas of a global “race to the top” and “bottom” were earlier discussed in context of data protection by Bennett and Raab *Governance of Privacy* (MIT Press, 2003).

¹⁴ Some small pockets of bespoke UK “AI” law do exist: Hervey and Levy (M Hervey and M Levy KC eds *The Law of Artificial Intelligence* (Sweet & Maxwell, 2nd edn, 2024) cite autonomous vehicles, some provisions in copyright and patent law, and AI-specific aspects of data protection law. To these can be added laws criminalising the creation and sharing of AI-generated child sexual abuse material, and non-consensual intimate adult deepfakes. Case law as

important of these regulators is the data protection (DP) regulator, the Information Commissioners Office (ICO), but others also play important roles such as the Competition and Markets Authority (CMA), Ofcom, the communications regulator and the Equalities and Human Rights Commission (EHRC)¹⁵. (Some domains of law without special regulators such as tort, contract and labour law, also continue to play important roles.)

This "light-touch" or "pro-innovation" regulatory environment emerged as explicit policy from the Conservative government's March 2023 *Pro-Innovation* White Paper¹⁶ but has been substantially carried forward by the new Labour government which came into power in 2024. On top of this vacuum, however, has been added a layer of "AI safety" activity, driven apparently by a belief it might benefit the UK both economically and in terms of global "soft power". While so far also entirely lacking in mandatory legal foundation, it seems increasingly likely (despite numerous delays) that for a degree of random historical reasons, some sort of statutory regulation may finally arrive, although possibly exclusively for the "AI safety" domain.

As can be seen, the UK system does not match well to a set of questions which seem roughly based around the EU AI Act paradigm or at least anticipate hard, rather than purely soft law. Given the lack of an over-arching risk-based paradigm, it is hard to define what the regulatory target is of UK AI governance; what obligations, if any, are imposed; what types of "AI risks" are governed, or how they are defined; let alone how such regulation might be designed and enforced. Indeed, even a definition of AI for UK governance, is an uphill task¹⁷. AI-related obligations flow most obviously from the UK's version of the GDPR: these cannot be examined in detail within the scope of this response, but some points are made in section 6.

Thus the format of this article will be: first, to introduce three influential factors in the UK's AI non-regulation regime : namely, reaction against EU law after Brexit; the hope of reviving UK economic fortunes via AI; and the desire of the Sunak Conservative government to capitalise on the arrival of generative or "frontier" AI. Secondly, to give a brief historical account of how the non-statutory light-touch "pro-innovation" regime came to be and salient criticisms. Thirdly to analyse what the UK's voluntary "AI Safety" regime may have to teach the world. Finally, I will summarise at the end some not wholly satisfactory answers to the "exam questions" set, using

Hervey and Levy say, "[on AI] is still conspicuous by its absence" (p 5). See further, section 6 below.

¹⁵ It should be noted that the UK has also signed up to the Council of Europe Framework Convention on Artificial Intelligence <https://www.coe.int/en/web/artificial-intelligence/the-framework-convention-on-artificial-intelligence>, 5 September 2024. This should have the potential to introduce a human-rights based regulatory regime for AI in the UK. In fact however it is uncertain when the treaty will come into force, it is up to the signatory state if the private sector is affected at all, and its obligations in the usual style of international treaties will need to be implemented domestically to give rights to citizens. Its future effect on UK law remains uncertain.

¹⁶ See Department for Science, Innovation and Technology (DSIT) *AI regulation: a pro-innovation approach*, published 29 March 2023, last updated 3 August 2023, at <https://www.gov.uk/government/publications/ai-regulation-a-pro-innovation-approach> (hereafter "Pro-Innovation").

¹⁷ A non-statutory definition of "AI or AI system" appears in the government's guidance on interpreting principles for regulators dealing with AI (see n 50 infra) : "Products and services that are 'adaptable' and 'autonomous' in the sense outlined in our definition in section 3.2.1 of the AI White Paper [n 12 infra]. This definition is inclusive of AI agents, frontier AI, and narrow AI." The factors of adaptiveness and autonomy are first discussed in the preliminary paper, 20 July 2022, <https://www.gov.uk/government/publications/establishing-a-pro-innovation-approach-to-regulating-ai/establishing-a-pro-innovation-approach-to-regulating-ai-policy-statement#the-scope> . They are to say the least unclear and probably both under and over inclusive of what are seen as conventionally designated as AI eg in OECD and EU rules.

the ICO and UK DP law as a key example of mandatory governance of AI.

2. Background regulatory influences

The United Kingdom (UK) is fond of styling itself “world-leading” in AI. Perhaps the most influential document concerning AI governance in the UK in recent times *A pro-innovation approach to AI regulation*¹⁸ (a product of the previous Conservative government in 2023, during the period of Rishi Sunak as prime minister) mentions the word “world” 13 times just in its introduction – as in “world-leading”, “top places in the world”, “most attractive place in the world”, and 28 times in the entire document. (“World-leading” itself appears three times.) Ironically however it makes no such claims to be a leader about the regulation part of the title. The somewhat hubristic assertion of world leader status is often anecdotally linked to former PM Rishi’s Sunak’s own interest in AI and the glamour of Big Tech¹⁹ but the subsequent Labour government has carried on the tradition. Labour’s flagship digital strategy document thus far, the *AI Opportunities Action Plan*²⁰, published in January 2025 by DSIT secretary Peter Kyle, also trumpets “world-leading” 4 times, and “world” 22 times (as in “world class”, “world leader”, “world’s top 1,000 AI researchers” etc. “AI superpower” is another common term trotted out, dating back perhaps to the UK AI Strategy of 2021²¹ which claimed to “continue our leadership as a science and AI superpower”²². Davies²³ comments that the UK is obsessed by a desire to perform better than its global peers in an “AI arms race” and to be seen as “best of the rest” after the US and China.

If the UK wants to be perceived as a world leader in AI, then why not, in EU style, as a leader in regulation? It is often assumed to be inevitable that the UK would have turned to a laissez faire, self- or co-regulatory style of AI governance²⁴, but on the other hand, pragmatically, UK firms will need to meet EU rules anyway to sell into their nearest and most important market so why not create your own version? Like the EU, UK policymakers and judges at least in name are required to consider human rights and fundamental values both under the European Convention on Human Rights and the Human Rights Act 1998). This should make the AI Act an attractive exemplar as well as an obvious harmonising influence. On the other hand, the common law tradition has often taken the view that technological novelties can be absorbed without need for

¹⁸ Pro-Innovation paper.

¹⁹ See eg “Sunak plays eager chatshow host as Musk discusses AI and politics”, *Guardian*, 2 Nov 2023 at <https://www.theguardian.com/politics/2023/nov/02/sunak-plays-eager-chatshow-host-as-musk-discusses-ai-and-politics>.

²⁰ <https://www.gov.uk/government/publications/ai-opportunities-action-plan/ai-opportunities-action-plan#lay-the-foundations>

²¹ Department for Digital, Culture, Media and Sport (DCMS), ‘New ten-year plan to make the UK a global AI superpower’, 22 September 2021 at <https://www.gov.uk/government/news/new-ten-year-plan-to-make-britain-a-global-ai-superpower>.

²² See C T Marsden “Generative AI Regulation in the UK” in Hacker et al eds, *Oxford Handbook of Generative AI*, forthcoming OUP, 2025. who notes that statements in this era of the Boris Johnson premiership “tended to extreme hyperbole in the same manner as Trump Presidential pronouncements” (section III) (hereafter “Marsden”).

²³ Matt Davies, “5. A Lost Decade? The UK’s Industrial Approach to AI” in *AI Nationalism(s): Global Industrial Policy Approaches to AI* (AI Now, Mar 12, 2024) 105-119 at <https://ainowinstitute.org/publications/research/ai-nationalisms-global-industrial-policy-approaches-to-ai>,

²⁴ See Marsden, section I.

new laws²⁵.

In fact a number of fairly obvious factors have determined the UK's current anti-regulatory stance. One is of course, Brexit. The UK has emerged from its estrangement from its closest and largest neighbouring trade bloc struggling to reap the promised "Brexit benefits", exacerbated by a pandemic and period of political instability. Thus, the Tory government (and to some extent the current Labour government) has found it politically necessary not only to trumpet the potential of AI to save the UK's "pro-innovation" economy, but simultaneously to reject alignment with EU laws.

The UK has also leaned heavily into the rhetoric that over-regulation – or, sometimes, any regulation – will necessarily stand in the way of innovation²⁶. I discuss the effect of this in section 3. Similar sentiments have created long-running tensions around the law of data protection²⁷. Sadly, the argument that regulation is what stands in the way of economic benefit from AI has little hard evidence so far and much ideology. Development of AI in the private sector in the UK has tended, as the iconic story of Deep Mind shows, to create value that is ultimately sucked back to Silicon Valley or retained within the already wealthy "Golden Triangle" of London, Oxford and Cambridge rather than "trickled down" to the general UK population, or disseminated to its poorer, more northern areas²⁸. Many features of the UK industrial culture such as lack of venture capital, entrepreneurial risk aversion, unfavourable tax regimes and in some regions poor skills, compute and data centre infrastructure, seem likely to have had far more adverse impact on the UK's AI economy than regulatory burden. Shearer and Davies argue persuasively that the current, Labour, theory of AI light touch regulation rests more on the advances AI will make for the *public* rather than private sector: an idea pushed by the influential Tony Blair Institute, who claim on tenuous methodology that AI could roll out £40bn of savings across public services²⁹. Yet AI in public services is largely developed via partnerships with the private sector, who are likely to prefer profit and market share for themselves, rather than social good³⁰. Even where public sector AI projects do not involve the private sector, major privacy concerns are often ignored until projects are far advanced, with

²⁵ See discussion in POST *Artificial intelligence: ethics, governance and regulation* 7 October 2024, at <https://post.parliament.uk/artificial-intelligence-ethics-governance-and-regulation/#heading-2>.

²⁶ See for a demolition, K Yeung and Ahmed-Rengers "The Smartest, Healthiest, Safest and Happiest Place": A Response to the UK's Pro-Innovation AI White Paper", LeADS Lab @University of Birmingham, 21 June 2023.

²⁷ See DCMS "Data; A New Direction", 10 September 2021, original and response at <https://www.gov.uk/government/consultations/data-a-new-direction>. The eventual reforms to the UK DP regime in the Data (Use and Access) Act 2025, passed in June 2025 though still at time of writing awaiting Royal Assent, are a considerably watered-down version of the original sweeping plans to deregulate the UK GDPR. The consultation discourse is a high point of post-Brexit free-market boosterism: "Outside of the EU, the UK can reshape its approach to regulation and seize opportunities with its new regulatory freedoms, helping to drive growth, innovation and competition across the country."

²⁸ E. Shearer and M. Davies "Code Dependency: Big Tech, market power and why progressives need an AI strategy" *Renewal*, June 20 2025, vol 33, issue 1 at <https://renewal.org.uk/articles/code-dependency-big-tech-market-power-and-why-progressives-need-an-ai-strategy/>; Davies, A Lost Decade *supra*

²⁹ Iosad, Railton and Westgarth *Governing in the Age of AI: A New Model to Transform the State*, a joint report by the Tony Blair Institute for Global Change and Faculty. <https://institute.global/insights/politics-and-governance/governing-in-the-age-of-ai-a-new-model-to-transform-the-state>. The figure was reached by using ChatGPT to identify public sector services which "it" thought could be performed by AI, and then costed accordingly.

³⁰ See n 29 *supra*.

unfortunate outcomes³¹.

A third, historical influence flowing from the pro-innovation and “world leader” memes, has been the desire of the UK to become a leader in “AI safety”, defined here loosely as monitoring, assessing and mitigating the risks of the most advanced large AI models or “frontier AI”³². The result, as discussed below, was the UK’s creation on a non-statutory basis of the world’s first AI Safety Institute, later renamed the AI Security Institute³³. Since Labour came into power in July 2024, it has pledged, finally, to legislate for the risks of “frontier AI” – even though these might seem worth placing in a queue behind the undoubted current issues around “conventional” AI or machine learning such as discrimination in hiring, job losses, educational impacts, issues with welfare benefit systems, etc. As of June 2025, however, this legislation has been repeatedly delayed, as we shall discuss below.

A final odd element of the UK’s mix of soft and hard AI governance relates to copyright. As in other countries, there is an ongoing conflict between the creative industries, who perceive their works as being swallowed with permission or remuneration into the maw of generative AI, and the aspiration to promote a homegrown AI industry by making training data easily available. The UK government, mediating this struggle, has so far favoured AI innovation even though on paper the UK makes far more profit from its creative industries³⁴. An amendment promoted by the state to insert an EU-style opt-out text and data mining (TDM) exemption into the Data Use and Access Bill (DUAB) created an epic showdown between the two chambers of the legislature, the House of Commons and the Lords, which has only just been resolved in favour of the elected chamber³⁵.

3. The UK’s “principles-based” pro-innovation approach, 2023-2024

Although UK AI regulatory policy is often said to have begun in 2017³⁶, the “pro-innovation” AI White Paper in 2023 has inarguably had the most influence on UK AI governance to date³⁷. It

³¹ See as one recent example, 3 June 2025, “NHS England pauses ‘ground-breaking’ AI project following GP data concerns”, *Pulse*, <https://www.pulsetoday.co.uk/news/technology/nhs-england-pauses-ground-breaking-ai-project-following-gp-data-concerns/>

³² This term has no definition in any UK or EU law but is used as preferred term throughout the UK’s AISI and Frontier AI Taskforce (formerly the Foundation Models Taskforce) documents. It appears to have ties originally to the “effective altruism” AI-doomerist wing: see Anderljung, M., Barnhart, J., Korinek, A. et al. (2023) Frontier AI Regulation: Managing Emerging Risks to Public Safety. arXiv. Doi:<https://doi.org/10.48550/arXiv.2307.03718>, replacing the more neutral term “foundation models” propagated by Stanford University. See G Helfrich AI and Ethics “The harms of terminology: why we should reject so-called “frontier AI” (2024) 4:699–705 <https://doi.org/10.1007/s43681-024-00438-1>.

³³ <https://www.aisi.gov.uk/>

³⁴ *Copyright and AI: Consultation*, 17 December 2024 at <https://www.gov.uk/government/consultations/copyright-and-artificial-intelligence/copyright-and-artificial-intelligence>.

³⁵ The “ping pong” did not in fact as this author had feared outlive Wimbledon: DUAB passed with the Commons overcoming stiff Lords opposition lead by Baroness Kidron, and Royal Assent given on 19 June 2025 <https://www.bbc.co.uk/news/articles/c8e6z590wwco>.

³⁶ In 2017, an independent review on “Growing the artificial intelligence industry in the UK” was carried out by Dame Wendy Hall and Jerome Presenti (15 October 2017 at <https://www.gov.uk/government/publications/growing-the-artificial-intelligence-industry-in-the-uk>); in 2018, the “AI Council” (now defunct) was created to advise the government on AI policy and ethics. See Marsden, citing Davies.

³⁷ It is clear that the UK’s general leanings towards a “light touch”, sectoral, regulatory model for technology predate the Pro-Innovation White Paper but this paper cannot go into detail on this. See for a full historical account,

argued that responding to the novel risks of AI and building public trust were important drivers for regulation; and that clear and consistent regulation could also support business investment and build confidence in innovation. It acknowledged “feedback from across industry that the absence of cross-cutting AI regulation creates uncertainty and inconsistency which can undermine business and consumer confidence in AI, and stifle innovation” .Yet somehow from this emerged the assertion that no new regulation was necessary: existing regulators were sufficient to deal with the problems and opportunities of AI and a framework of loose and cliched principles (“pro-innovation, proportionate, trustworthy, adaptable, clear and collaborative”) would suffice to guide regulators in how to co-operate and harmonise their activities.

Numerous regulators already oversee AI in the UK, of course, such as the Information Commissioner’s Office (ICO) for data protection, the Competition and Markets Authority (CMA) for market dynamics, the Financial Conduct Authority (FCA) for financial services, and Ofcom for communications. These four key regulators had already of their own volition formed a non-statutory co-operative body, the Digital Regulators Cooperation Forum (DRCF) in 2020³⁸. Other important regulators included the Prudential Regulation Authority (PRA), the Bank of England, the Medicines and Healthcare Regulatory Agency (MHRA) and the discrimination watchdog, the Equalities and Human Rights Commission (EHRC). The White Paper proposed that these and other regulators continued in their roles and used their existing legal powers and capacities to govern AI but guided by cross-sectoral principles. These principles, loosely modelled, it was alleged, on those published by the OECD³⁹ are :

- Safety, security and robustness
- Appropriate transparency and explainability
- Fairness
- Accountability and governance
- Contestability and redress

Regulators would be expected to apply the principles proportionately to address the risks posed by AI within their remits, in accordance with existing laws and regulations. This approach was described as “agile and proportionate”. These principles were planned not to be implemented via statute at least initially, but after due consultation a statutory duty was expected requiring regulators to have due regard to the principles. The creation of an overall AI regulator was firmly rejected, though it was acknowledged a central support and coordination function would be needed for functions such as monitoring and evaluation of the overall regulatory framework’s effectiveness; monitoring and assessing AI risks as they arrived; conducting horizon scanning and gap analysis; supporting testbeds and sandbox initiatives to help AI innovators; providing education and awareness; and promoting interoperability with international AI regulatory frameworks. These central functions were to be supported by central government (some later seem to have been taken up by formally or informally by the AI Safety Institute (below).) No new powers or resources were provided to regulators by statute or otherwise. The sign off was

Marsden (supra); also Sir Patrick Vallance’s [Pro-innovation Regulation of Technologies Review: Digital Technologies](#), HM Treasury, 2023.

³⁸ <https://www.drcf.org.uk/> .

³⁹ Pro-Innovation, para 3.2.3 .

that “regulation is not always the most effective way to support responsible innovation” and that the UK’s “pragmatic” approach would (surprise) cement its position as “a leader in this global conversation”.

The Pro-Innovation paper met with a despairing shrug from much of academe, civil society and some regulators. Practically, it failed to take into account that not every important sector of activity even had a regulator – the most obvious case being labour – nor did all regulators have the same capacities, resources and legal powers which might enable them to appropriately and evenly implement the principles. The EHRC, a crucial regulator given the early emphasis on discriminatory harms arising from AI systems trained on historically inaccurate, biased or partial data, was particularly vulnerable in this regard. Not part of the leading DRCF group, it reported in 2024 that its budget had remained static since 2016, amounting to a 30% cut in real terms. Its ability to scale up and respond equality and human rights risks related to AI was therefore “limited”⁴⁰. Although the EHRC reported cooperation with the DRCF and in particular the ICO, they remained the principal regulator for enforcing and overseeing the Public Sector Equality duty⁴¹. In 2024, only a core team of 8 worked on AI matters full time, and none were technology experts. The additional expectations to implement the Pro-innovation principles, they noted, required additional resourcing from government which had not yet been forthcoming. Finally, there was too little emphasis on human rights and equality in the White Paper, the former only included under the limited heading of “Fairness”.

The ICO, a key regulator in this space, and one of the better-resourced⁴², were more placatory but noted that it was better for regulators themselves to produce their own principles as guidance for action, given they had to align with the laws they oversaw. Businesses needed predictability and certainty in how laws would be enforced, especially SMEs lacking higher level legal advice. “Light touch” or no regulation could be worse for business efficiency and confidence than sensible legislation.⁴³

Finally civil society and academics criticised, inter alia, the gaps in coverage of the paper; the lack of an AI Ombudsman or central regulator; the lack of principles for developers *ex ante* as opposed to regulators *ex post*; the lack of increased funding or new statutory powers for regulators; and the lack of urgency regarding harms from emergent large or foundation models as

⁴⁰ EHRC “An update on our approach to regulating artificial intelligence”, 30 April 2024 at <https://www.equalityhumanrights.com/media-centre/news/update-our-approach-regulating-artificial-intelligence#workingwithotherregulators>.

⁴¹ See *Artificial intelligence: meeting the Public Sector Equality Duty*, EHRC, 1 September 2022, <https://www.equalityhumanrights.com/node/16301>.

⁴² It is worth noting though, that the ICO’s own enforcement capacities already seem hopelessly overstretched merely policing ordinary data harms, before getting to AI, even though it is possibly the best resourced regulator in the UK. See discussion below in section 7. See D Erdos “Towards Effective Supervisory Oversight? Analysing UK Regulatory Enforcement of Data Protection and Electronic Privacy Rights and the Government’s Statutory Reform Plans”, University of Cambridge Faculty of Law Research Paper No. 16/2022 at https://papers.ssrn.com/sol3/papers.cfm?abstract_id=4284602

⁴³ See “The Information Commissioner’s response to the Government’s AI White Paper”, 2023. (the link <https://ico.org.uk/media/about-the-ico/consultation-responses/4024792/ico-response-ai-white-paper-20230304.pdf> was inactive at 18 June 2025).

well as “conventional” machine learning⁴⁴. Yeung and Ahmed-Rengers⁴⁵, scathing about the paper’s lack of analytical foundation, argued significantly that in contradistinction to the EU AIA, nowhere in the paper defined what a relevant “AI risk” was or what counted as a risk for the purpose for the paper.

The Conservative government published its response to the Pro-Innovation consultation responses in February 2024⁴⁶, outlining steps that had been taken towards the creation of the central support function. A fairly paltry £10mn pounds (out of a £100mn pot) was allocated towards boosting regular capacity, and an AI and Digital Hub pilot, run for a year by the DRCF but now shuttered, was created to help SMEs with case studies and cross-regulator queries⁴⁷. Guidance was issued to regulators on how to interpret the five cross-cutting principles⁴⁸. But in general, the government’s attention had apparently moved away by this time from quotidian AI risks affecting largely the most marginalised – the poor, welfare-dependent, disabled and migrants - to the more glamorous (and hopefully, lucrative) world of frontier AI and AI safety.

4. The “AI Safety” period

On 30 November 2022, as is well known, OpenAI launched ChatGPT and the world was never the same again⁴⁹. PM Sunak decided to be “world-leading” again by announcing the “world’s first global AI regulation summit”⁵⁰ to be held at Bletchley Park, iconic home of the WWII Enigma Machine. 28 sovereign states and the EU signed the “Bletchley Declaration”⁵¹, which announced an agenda for addressing frontier AI risk which would focus on identifying AI safety risks and building “risk-based” policies. Rather notably, despite a reference to differing legal frameworks, the list of mitigations to be pursued were wholly technical, including transparency measures, appropriate evaluation metrics, tools for safety testing, and developing relevant public sector capability and scientific research.

After Bletchley, the UK established the world’s first AI Safety Institute (AISi – subsequently

⁴⁴ See for a comprehensive response, *Regulating AI in the UK*, Ada Lovelace, 18 July 2023 at <https://www.adalovelaceinstitute.org/report/regulating-ai-in-the-uk/>. Note that ChatGPT had arrived in November 2022 but the Pro-Innovation paper, which had been in the works for some time before its publication in March 2023 had no real response to the issues of regulating generative AI (which had no special regulator) except to say that it would fall under the governments “central function” and be supported by the newly created Foundation Model Taskforce. Rather more was said in the later government response to responders to the consultation, infra n 47

⁴⁵ Yeung and Ahmed-Rengers, supra n 27.

⁴⁶ See DSIT “A pro-innovation approach to AI regulation: government response”, 2024 at <https://www.gov.uk/government/consultations/ai-regulation-a-pro-innovation-approach-policy-proposals/outcome/a-pro-innovation-approach-to-ai-regulation-government-response#executive-summary>

⁴⁷ <https://www.drcf.org.uk/ai-and-digital-hub>

⁴⁸ DSIT, “Implementing the UK’s AI Regulatory Principles: Initial Guidance for Regulators”, February 2024 at https://assets.publishing.service.gov.uk/media/65c0b6bd63a23d0013c821a0/implementing_the_uk_ai_regulatory_principles_guidance_for_regulators.pdf.

⁴⁹ See summary in L Edwards et al “Private Ordering and Generative AI: What Can We Learn From Model Terms and Conditions?”, forthcoming in Zou et al eds *Cambridge Research Handbook on Generative AI and the Law* (CUP 2025), Available at SSRN: <https://ssrn.com/abstract=5026677> or <http://dx.doi.org/10.2139/ssrn.5026677>

⁵⁰ “Press release: UK to host first global summit on Artificial Intelligence”, 7 June 2023 at <https://www.gov.uk/government/news/uk-to-host-first-global-summit-on-artificial-intelligence>.

⁵¹ <https://www.gov.uk/government/publications/ai-safety-summit-2023-the-bletchley-declaration/the-bletchley-declaration-by-countries-attending-the-ai-safety-summit-1-2-november-2023>

renamed AI Security Institute). The UK AISI was announced to be dedicated to evaluating frontier AI models, conducting pre-deployment testing, and contributing to a global understanding of AI risks. Its work focused on "leading edge" AI safety research, encompassing three core processes: model evaluation, safety research into potential harms like misuse and societal biases, and international collaboration to establish global safety standards⁵². But the prevalent focus on as yet unrealised "catastrophic" or "existential" risks (including AI-enabled biowarfare; cyberhack threats; loss of human control over autonomous AI) was strongly criticised as misplacedly overshadowing the more immediate, concrete harms of AI, especially in the "high risk" and "prohibited risk" domains regulated by the EU AIA⁵³. One of the less widely stated benefits of the AI safety evaluation work was the belief that it might found a lucrative AI assurance industry for the UK⁵⁴. Yet it seems more likely that, as Shearer and Davies put it, it might risk ending up as "the provider of free services (and free PR) to Big Tech"⁵⁵.

Furthermore, mandatory legislation was still off the table even though it was obvious that a UK based quango could not, in reality, impose duties on unwilling providers of high-impact models based mainly in the US and China. Powers to demand access to models, to impose conditions on model providers and to block access to UK markets if these conditions were not met were wholly lacking⁵⁶; and voluntary agreements for pre-deployment access to frontier models were quickly described as "fraying"⁵⁷. The re-election of Donald Trump also seems likely to reduce co-operation between AI model providers and the UK AISI. The US government has signaled that "burdensome and unnecessary regulation" by Europe of American AI companies is no longer to be tolerated⁵⁸, especially given the US's own rolling back of its AI safety guardrails.⁵⁹

Although the AISI may be foundering as a "soft" regulatory paradigm, it is interesting as the one

⁵² See HM Government Emerging Processes: Frontier AI Safety, October 2023 at <https://assets.publishing.service.gov.uk/media/653aabbd80884d000df71bdc/emerging-processes-frontier-ai-safety.pdf>.

⁵³ See Ada Lovelace, n 56 infra.

⁵⁴ See DSIT "Assuring a Responsible Future for AI", 6 November 2024 at [https://www.gov.uk/government/publications/assuring-a-responsible-future-for-ai/assuring-a-responsible-future-for-ai#:~:text=This%20Assuring%20a%20responsible%20future,DSIT%20\)%20work%20will%20seize%20these](https://www.gov.uk/government/publications/assuring-a-responsible-future-for-ai/assuring-a-responsible-future-for-ai#:~:text=This%20Assuring%20a%20responsible%20future,DSIT%20)%20work%20will%20seize%20these); Digital Regulation Cooperation Forum *Ensuring Trustworthy AI: The Emerging AI Assurance Market*. <https://www.drcf.org.uk/publications/blogs/ensuring-trustworthy-ai-the-emerging-ai-assurance-market>

⁵⁵ Supra, n 28. The writers suggest that public investments in evaluating frontier AI models might be better devoted to building sovereign capacity within the UK independent of Big Tech. The AISI is remarkably well resourced for a UK state quango not meeting any regulatory mandate and ostensibly at least (see n 54 above) devoted to altruistic aims. £100mn was allocated in its first year and special arrangements were made to allow hiring at above standard Civil Service rates. At least 50 staff have been hired. (Compare the £10mn allocated in the AI Opportunities Action Plan to skill up all the existing regulators tasked with regulating non "frontier AI". Also, the paltry \$10mn allocated to the US AISI before it was rebranded by Trump! – see <https://cfg.eu/the-ai-safety-institute-network-who-what-and-how/>)

⁵⁶ See Ada Lovelace Institute. *Safety First*, November 27 2024, at <https://www.adalovelaceinstitute.org/blog/safety-first/>

⁵⁷ <https://www.politico.eu/article/rishi-sunak-ai-testing-tech-ai-safety-institute/>, cited by n 45 above.

⁵⁸ See quote from Secretary of Commerce Howard Lutnick relating to the repeal of Biden's Executive Order on AI, TechCrunch, supra n x.

⁵⁹ See "UK's ambitions to police AI face Trump's 'starkly' different approach", *Financial Times*, 13 December 2024 at <https://www.ft.com/content/c9f6067c-3faa-4e6a-bc0f-2ed7290a8476>. Another factor affecting cooperation in model testing seems to have been the fear it might be a conduit for espionage and national security leaks.

clear case in modern UK AI policy where an overarching risk-based framework, albeit not tied to mandatory obligations, has been clearly adopted across multiple AI models and use cases, in the form of “Responsibility Capability Scaling”.

“Responsible Capability Scaling [RCS] is an emerging framework to manage risks associated with frontier AI and guide decision-making about AI development and deployment. It involves implementing processes to identify, monitor, and mitigate frontier AI risks, which include other processes and practices set out in this document and are underpinned by robust internal accountability and external verification processes.”

RCS requires at least six processes:

- Model evaluations and red teaming
- Model reporting and information sharing
- Security controls including securing model weights
- Reporting structure for vulnerabilities
- Labelling for AI-generated material

And two more are suggested namely

- Preventing and monitoring model misuse
- Data input controls and audits

These outline processes though “risk-based” still do not, at least publicly, define the *level or nature* of the risks evaluated or tie them to a threshold for mitigation actions or indeed prohibitions. They also do not define any clear line between “ordinary” AI risks, risks from generative AI, and “systemic” risks, in EU style. Risks are listed (“misuse, societal impacts, autonomous systems acting to “limit human oversight”) or given as “case study” examples, rather than sorted in any clear taxonomy. However the AISI does seem to want to travel in this direction. In an October 2024 blog, the AISI suggested that “a gold standard for development and deployment decisions of frontier AI would include a comprehensive set of clearly defined risk and capability thresholds that would likely lead to unacceptable outcomes, unless mitigated appropriately”⁶⁰. To this end the AISI helped sponsor the *International Scientific Report on the Safety of Advanced AI* presented at the Paris AI Summit in February 2025⁶¹, which is probably the most comprehensive account of “frontier AI” risks, and technical capabilities to mitigate risk yet. The emphasis remains firmly however on the “technical” aspect rather than mandatory laws to control AGI or “smarter-than-human systems”, a matter of some controversy in Paris⁶².

It is impossible to compare the AISI approach to advanced AI to the EU regime for General

⁶⁰ AI Security Institute “Early lessons from evaluating frontier AI systems”, October 2024 at <https://www.aisi.gov.uk/work/early-lessons-from-evaluating-frontier-ai-systems#:~:text=The%20recently%20published%20interim%20International,be%20duplicative%20to%20efforts%20elsewhere.>

⁶¹ <https://www.gov.uk/government/publications/international-ai-safety-report-2025>, 29 January 2025.

⁶² See Future of Life Institute response from Max Tegmark at https://www.linkedin.com/posts/future-of-life-institute_with-the-ai-action-summit-underway-a-draft-activity-7294810817156235264-e_zp?utm_source=share&utm_medium=member_desktop&rcm=ACoAAAYu9pUBaPMsaZnXJl7fZRVowNatlPeG4Sfk.

Purpose AI (GPAI) or GPAI with systemic risk, given both the wholly soft law, technology-lead approach of the AISI and the fact that the EU code of practice for GPAI and the standards for high-risk AI system conformity have yet to be finalised. However some interesting lessons might possibly be learnt here from the UK and international work on taxonomies of risk and mitigations in AI safety.

5. Labour's AI governance policy, July 2024-now

A new Labour government took control in July 2024 and set out their AI legislative policy in the Kings Speech a few weeks later. It was not a noticeable diversion from the former Tory soft law policy. AI was only mentioned twice in 104 pages of briefing notes⁶³ and the major commitment was to “establish the appropriate legislation to place requirements on those working to develop the most powerful artificial intelligence models” – a move forward on legitimising the role of the AISI at least. The AI Opportunities Action Plan, published in January 2025 outlined 50 recommendations aimed at positioning the UK as a slightly more modest global AI leader⁶⁴ but the only legal commitments were “to provide clarity on how frontier models will be regulated” and to reform the UK’s copyright text and data mining exception so as to benefit providers seeking to train AI models in the UK. For everything else, the song remained very much the same :

“Regulators themselves have an important role in supporting innovation as part of their Growth Duty⁶⁵. Government must protect UK citizens from the most significant risks presented by AI and foster public trust in the technology, particularly considering the interests of marginalised groups. That said, we must do this without blocking the path towards AI’s transformative potential.” (para 22)

In the public sector, the soft law approach was replicated. An “AI Playbook” was published as a practical guide for government departments⁶⁶ emphasising tools already largely required by DP law such as risk assessments, robust data governance frameworks, mitigating potential biases in AI systems, and establishing clear accountability structures for AI applications within public services. The Algorithmic Transparency Recording Standard – an AI transparency register for government functions, originally devised in 2021 – was also relaunched and is now “mandatory”, with 59 entries as of March 2024⁶⁷.

⁶³ 17 July 2024 at

https://assets.publishing.service.gov.uk/media/6697f5c10808eaf43b50d18e/The_King_s_Speech_2024_background_briefing_notes.pdf.

⁶⁴ Supra, n 20.

⁶⁵ The duty for regulators to consider the desirability of promoting economic growth actually had existed in statute since the Deregulation Act 2015, s 108 but is turbo charged here : “*all regulators to publish annually how they have enabled innovation and growth driven by AI in their sector.*” (para 28). If regulators felt their job was not actually to promote innovation but to, er, safeguard rights and society “*government should consider more radical changes to our regulatory model for AI, for example by empowering a central body with a mandate and higher risk tolerance to promote innovation across the economy*” [italics added].

⁶⁶ HM Government Artificial Intelligence Playbook for the UK Government

<https://www.gov.uk/government/publications/ai-playbook-for-the-uk-government/artificial-intelligence-playbook-for-the-uk-government-html>

⁶⁷ <https://dataingovernment.blog.gov.uk/2025/05/08/making-the-algorithmic-transparency-recording-standard-atrs-mandatory-across-government/>

Meanwhile, frustrated at the absence of ministerial action, two private House of Lords' bills were launched in 2024⁶⁸. The most significant has been Lord Holmes' Artificial Intelligence (Regulation) Bill⁶⁹, re-introduced in 2025, which proposed an "AI Authority" on a statutory basis to coordinate regulators and several other obligations reminiscent of the EU AIA, such as mandatory labelling of AI systems, mandatory audits and transparency about the use of copyrighted training data. Private Members' Bills rarely pass and it has not so far. Nevertheless, its presence has sparked significant debate.

The Labour government itself, spooked by the Trumpian "Mar-a-Lago Effect", has repeatedly delayed on meeting its King's Speech commitment concerning AI Safety and the AISI. A Bill was expected initially at end 2024, then at latest by summer 2025. Instead, the UK's hesitancy to seem opposed to US-based Big Tech interests was visible in its decision, alongside the US, not to sign the anodyne Paris AI Action Summit declaration⁷⁰ and its near defeat over AI copyright rules for training data created more vacillation.⁷¹ The near miss with an embarrassing defeat on AI copyright seems to have caused the government to rethink yet again. We are now promised a "comprehensive" AI bill in the next parliamentary session to "address concerns about [AI] issues including safety and copyright"⁷². Bizarrely, through this series of incidents and setbacks, it is thus possible after all we may see an AI statute from the UK though it is very unlikely to be comprehensive in the style of the AIA.

6. The Information Commission as the de facto UK AI Regulator

Finally, it is worth considering in more detail the role of the ICO. As we have seen the "hard" law of AI in the UK is almost exclusively contained in a number of pre-existing domains – consumer law, competition, finance, banking, equalities, human rights, intellectual property law et al. It is not possible to go into the regulatory regimes, objects and styles of each of these domains⁷³. However, the ICO has a good claim to be the de facto lead regulator for AI in the UK and thus how it presents itself as operating in relation to AI, is very relevant to questions concerning how UK AI governance operates.

The ICO has actively engaged with regulating AI since at least its report on big data, AI and machine learning in 2014⁷⁴. Since AI is almost invariably created with the use of personal data, certainly if it has significant effects on individuals or society, it falls naturally into the scope of

⁶⁸ See also Lord Clement-Jones Public Authority Algorithmic and Automated Decision-Making Systems Bill, 2024 (<https://bills.parliament.uk/bills/3760>). This only related to the public sector but was arguably more ambitious in introducing an obligation for Algorithmic Impact Assessments.

⁶⁹ See <https://bills.parliament.uk/bills/3942>, reintroduced on 5 March 2025.

⁷⁰ Statement on Inclusive and Sustainable Artificial Intelligence for People and the Planet. Posted on 11 February 2025 at <https://www.elysee.fr/en/emmanuel-macron/2025/02/11/statement-on-inclusive-and-sustainable-artificial-intelligence-for-people-and-the-planet>.

⁷¹ See section 2 above, and n 35.

⁷² See "UK ministers delay AI regulation amid plans for more 'comprehensive' bill", Guardian, 7 June 2025 at <https://www.theguardian.com/technology/2025/jun/07/uk-ministers-delay-ai-regulation-amid-plans-for-more-comprehensive-bill>.

⁷³ See generally Hervey and Levy, *supra* n 13. Marsden considers in some depth the roles of the CMA and Ofcom, the latter described as a "very energetic online regulator", partly because of its role as the overseer of the Online Safety Act 2023.

⁷⁴ Updated 2017. See ICO *Big data, artificial intelligence, machine learning and data protection* v 2.2, at <https://ico.org.uk/media2/migrated/2013559/big-data-ai-ml-and-data-protection.pdf>

the ICO. AI was designated as one of its key priorities in its technology strategy of 2018-2021 and in the ICO25 strategy document⁷⁵. The ICO has developed an AI Risk Toolkit⁷⁶ to assist users and issued a great deal of very useful guidance, including the *Guidance on Explaining Decisions Made with AI*⁷⁷ and guidance on when a Data Protection Impact Assessment (DPIA) is necessary (with machine learning/AI as one of the cardinal use cases⁷⁸). The small amount of case law on “AI” in the UK has all related to aspects of DP law, sometimes combined with judicial review. These include a landmark case on police use of live facial recognition in *Bridges v South Wales Police*⁷⁹; and the ICO’s actions against Clearview AI⁸⁰, also concerning face recognition, and against Snap for failures to complete adequate DPIAs in respect of their new genAI application “MyAI”⁸¹. Most recently, the ICO has defended in court its £12.7mn fine against TikTok for unlawful processing of children’s data⁸².

The ICO’s involvement with AI regulation has accelerated in the last two years or so, driven by the rising use of AI in public sector decision making, biometric surveillance (face recognition) and, of course, the rise of generative AI. It has also had to deal with recurrent attempts to reshape the UK GDPR post-Brexit; a radical attempt in the DP and Digital Information Bill (DPDIB) fell with the Tory government; a rather more timid Labour Bill has just passed⁸³. Although not solely devoted to AI, the new Data (Use and Access) Act 2025 has significant implications for AI in several respects:

- “*recognised*” *legitimate interests*. A number of use cases are presumed lawful under art 6(1)(f) of the GDPR, reducing the need for the data controller to go through the full “balancing test” between their interests and the fundamental rights and interests of the data subjects affected. Some of these may be of use to AI companies and policing bodies using AI.
- *reform of art 22 GDPR*, which will have implications for private companies but especially for governmental ADM. The general right not to be subject to a decision based solely on automated processing is removed, but safeguards reinserted, meaning the effect is overall relatively small. In fact, clarity is improved in relation to what is “significant” effect and what is a “solely automated” decision.
- relaxing restrictions on processing for ‘*scientific research purposes*’.

⁷⁵ <https://ico.org.uk/about-the-ico/our-information/our-strategies-and-plans/ico25-plan/>

⁷⁶ <https://ico.org.uk/for-organisations/uk-gdpr-guidance-and-resources/artificial-intelligence/guidance-on-ai-and-data-protection/ai-and-data-protection-risk-toolkit/>

⁷⁷ Co-developed with the Alan Turing Institute. See <https://ico.org.uk/for-organisations/uk-gdpr-guidance-and-resources/artificial-intelligence/explaining-decisions-made-with-artificial-intelligence/>.

⁷⁸ See below n 88.

⁷⁹ [2020] EWCA Civ 1058.

⁸⁰ In October 2023, the First Tier Tribunal allowed Clearview’s appeal against an ICO fine of £7.5mn. The ICO is currently seeking to oppose this. See <https://ico.org.uk/about-the-ico/media-centre/news-and-blogs/2023/11/information-commissioner-seeks-permission-to-appeal-clearview-ai-inc-ruling/>, 17 November 2023.

⁸¹ See “UK Information Commissioner issues preliminary enforcement notice against Snap”, ICO website, 6 October 2023 at <https://ico.org.uk/about-the-ico/media-centre/news-and-blogs/2023/10/uk-information-commissioner-issues-preliminary-enforcement-notice-against-snap/>

⁸² See <https://ico.org.uk/about-the-ico/media-centre/news-and-blogs/2023/04/ico-fines-tiktok-127-million-for-misusing-children-s-data/>, ICO 4 April 2023. The fine had already been reduced from £27mn after “representations” from TikTok.

⁸³ DUAB, see n 35 supra.

- provisions for *collective management* of DP rights.

An important consultation exercise by the ICO on questions around *generative* AI has just concluded⁸⁴. Five consultations were issued relating to: the lawful basis for web scraping to train genAI models; purpose limitation in the genAI lifecycle; accuracy of training data and model outputs; information rights and genAI; and allocating data controllership across the genAI supply chain. On the whole, the ICO robustly defended its existing interpretations of the GDPR in this context, especially in relation to purpose limitation, accuracy and controllership.

On web scraping, some more controversial views emerged. The ICO took the view that legitimate interests were the sole available basis for training genAI, and as this was a “high risk, invisible processing activity” (ie data subjects were unlikely to know about it), developers might “struggle” to pass the balancing test; and should show why alternative methods of gathering training data, eg licensing, were not suitable. Finding a lawful basis for scraping sensitive personal data under art 9 GDPR, especially, remained an open problem. In relation to data subject information rights, the ICO said they expected genAI developers to “substantially improve” how they fulfilled transparency obligations and were largely unconvinced that output filters were adequate to meet erasure and accuracy rights⁸⁵. In particular, they were clear that models could themselves be personal data.

7. Some Conclusions on ICO Regulatory Targets and Enforcement Issues

ICO : Regulatory targets

The ICO *AI and Biometrics Strategy*, launched in June 2025⁸⁶, as well as the more general ICO25 strategy document, both make it clear that the ICO’s top **regulatory targets** include:

- the development of *foundation models* — large-scale models trained on vast datasets and adaptable to a wide range of downstream tasks;
- the use of *automated decision-making (ADM) in recruitment and public services*; and
- the use of *facial recognition technology (FRT) by police* forces. Notably this is not extended to the use of FRT by private companies eg in shops or workplaces.

Furthermore within these three cases, three cross-cutting issues are important:

- transparency and explainability;
- bias and discrimination; and
- rights and redress.

The ICO has then set out the targeted actions it intends to take in 25/26 including

⁸⁴ See “Information Commissioner’s Office response to the consultation series on generative AI”, <https://ico.org.uk/about-the-ico/what-we-do/our-work-on-artificial-intelligence/response-to-the-consultation-series-on-generative-ai/>.

⁸⁵ On these problems especially in relation to AI “hallucinations”, see RD Binns and L Edwards “ChatGPT Tells Fibs About Me: Are Data Protection and Libel Adequate Tools to Protect Reputation in the LLM Era?”, forthcoming P Hacker et al eds *Oxford Handbook of the Foundations and Regulation of Generative AI*, 2025.

⁸⁶ “Preventing harm, promoting trust: our AI and biometrics strategy”, ICO at <https://ico.org.uk/about-the-ico/our-information/our-strategies-and-plans/artificial-intelligence-and-biometrics-strategy/>.

- A statutory code of practice on AI and ADM
- Seeking assurances from government departments re responsible use of ADM
- Scrutiny of the use of ADM in recruitment by major employers
- Action to control misuse of personal data, especially sensitive personal data, in foundation model development
- Action to control proper use of police FRT and
- Publishing a report on DP and agentic AI

ICO: How is enforcement prioritized; risk assessment

The ICO has always viewed itself, for reasons of resources, accountability and fairness as operating a risk-based approach to prioritizing its work⁸⁷. The current statement of how these risks are assessed and balanced with the “Growth Duty” is however extremely vague. General regulatory priorities under the ICO25 umbrella are based on

- the likely impact of our actions,
- alignment with our strategic priorities, including considering whether we are best placed to act or should work in collaboration with others (for example a different sector regulator);
- the likelihood of successful regulatory outcomes
- the resources we will require to achieve those outcomes

These priorities must then be balanced against various *risks*, which are distributed through the GDPR and the many ICO guidance documents. Risks can clearly be more than economic : discrimination, identity theft, financial loss, reputational damage, and loss of confidentiality are all cited in various places.

More useful though is the advice provided in relation to DPIAs⁸⁸. Because DPIAs are required when processing is likely to result in a “high risk” to the rights and freedoms of natural persons (GDPR, art 35(1)(c)), the ICO is forced to clarify what these words mean for them. Most of this guidance is taken from or informed by EU level guidance such as European DP Board (EDPB) opinions. However some is ICO-original. In particular, the ICO consider as “likely to result in high risk”, as well as those named in GDPR, art 35 (systematic profiling; large scale use of sensitive data; and public monitoring), processing activities involving:

- Evaluation or scoring.
- Automated decision-making with legal or similar significant effect.
- Systematic monitoring.
- Sensitive data or data of a highly personal nature.
- Data processed on a large scale.
- Matching or combining datasets.

⁸⁷ See <https://ico.org.uk/media2/migrated/2259467/regulatory-action-policy.pdf>, 2013, from Elizabeth Denham’s era as Commissioner.

⁸⁸ <https://ico.org.uk/for-organisations/uk-gdpr-guidance-and-resources/accountability-and-governance/data-protection-impact-assessments-dpias/when-do-we-need-to-do-a-dpia/>

- Data concerning vulnerable data subjects.
- Innovative use or applying new technological or organisational solutions.
- Preventing data subjects from exercising a right or using a service or contract.

ICO : enforcement issues

Even though the ICO seems to be doing its best to be transparent about its regulatory priorities in relation to AI, a large problem in seeing it as an “AI regulator” is that even in its general DP oversight role, its enforcement record in recent times is notoriously poor. David Erdos, Professor of Law at CIPIL, Cambridge has been active in cataloguing the enforcement failures of the ICO, particularly under John Edwards⁸⁹. He reports that throughout 2024, despite 28,582 complaints logged, the ICO issued zero fines and zero enforcement notices under the GDPR. Furthermore by a letter issued in June 2022, the ICO formally downgraded its use of penalties for public sector breaches, although this was partially reviewed in December 2024. Erdos calls this a formal accountability failure of the office.

This record does not seem purely down to resources; indeed, the ICO is one of the best staffed and resourced DP Authorities (DPAs) in Europe. Despite this, the numbers of enforcement actions in countries such as Spain and Germany in the same period have been much higher. (It is worth noting that as detailed above, the ICO’s record already looks better in 2025). Erdos also suggests that the ICO is interested in “newsworthy” campaigns, rather than the more “prosaic scrutiny”. He proposes two solutions: one, the ICO’s track record in taking action should be scrutinised biannually by the EHRC, and a report laid in Parliament; two, it should become possible to appeal non-action by the ICO to the Information Tribunal on points of general public interest⁹⁰.

8. General takeaways from the UK’s AI governance regime: from the Brussels Effect to the Mar-a-Lago Effect

Alanoca et al argue that “soft law” regimes create “blurred definitions of ‘AI regulation’, mislead the public and create a false sense of safety”⁹¹. The UK regime may well fit into this pattern. The UK can however, rather fortuitously, now present itself as aligning with the US in its momentum away from hard regulation of AI, and away from the perceived over-regulation of the EU. Although the EU itself now appears at times to be paddling backwards to avoid digital trade war with the US⁹², the UK may well see itself as specially benefiting from its “special relationship” with the US. Having spurned the Brussels Effect, it may now benefit from the Mar-a-Lago Effect, which might be termed a counter-narrative of deregulation granting effective

⁸⁹ Written evidence submitted by Professor David Erdos, Professor of Law and the Open Society, and Co-Director of the Centre for Intellectual Property and Information Law (CIPIL), University of Cambridge (DUAB08): Holding the Information Commissioner’s Office (ICO) to Account, 27 February 2025, at <https://bills.parliament.uk/publications/59412/documents/6112>.

⁹⁰ Case law has currently closed off this route to review: see *Killock and Veale & Ors v Information Commissioner* [2021] UKUT 299 (AAC) and *Delo v Information Commissioner* [2023] EWCA Civ 1141.

⁹¹ *Supra* n 3 at section 1.

⁹² See “Fears grow EU will cave on tech rules amid Trump pressure”, Politico.eu, June 23 2025 at <https://www.politico.eu/article/grow-us-eu-rules-tech-donald-trump-pressure-brussels/> suggesting the Commission might reduce demands for US compliance with the DMA to evade tariff reprisals from Trump.

global soft power to US AI model providers.

What lessons if any can Korea learn from the UK experience to date?

Evidence based policy. If AI governance is to prioritise innovation over protecting fundamental rights and preventing harms, then it should at least be based on convincing empirical economic evidence. Instead, the UK's journey seems often to have been based on hubris, rhetoric and anecdotal advice from "business leaders"⁹³. As Yeung and Ahmed-Rengers state, the Pro-Innovation white paper "lacks a substantive analytical framework and evidential support for the belief that a loosely regulated AI market is in the public interest; it lacks an analysis of policy alternatives"⁹⁴. Various policy white papers detailed above have often lacked robust economic methodology. DSIT claim eg that "the UK's mature assurance ecosystem for cyber security is worth nearly £4 billion to the UK economy". Only later do we find that this market for AI assurance is based on an "estimated gap of £1.08 billion to £5.05 billion between current estimated market turnover and possible market demand expenditure" which seems rather conjectural⁹⁵. The Tony Blair Institute report on AI in the public sector, as noted above, was widely mocked for inventing a methodology reliant on believing ChatGPT could itself identify what human tasks it could replace. This writer is not an economist: but the lazy assumption that innovation is always tied to deregulation is easily combatted, as Alanoca et al point out, by the example of China: "the co-existence of stringent regulation with cutting-edge innovation exemplifies that these two dynamics are not inherently opposite". Indeed, the much-derided regulation-heavy slow-moving EU has in general much higher rates of productivity than the "agile" UK.

Participation and regulatory capture. The Ada Lovelace Institute have repeatedly stressed the need for diverse participation in the creation of AI policy, especially from those populations likely to suffer resulting harms. Despite the plethora of consultations, the UK experience shows up poorly in terms of meaningful societal participation and displays signs of regulatory capture by "big tech"⁹⁶. In the Labour era, according to a number of press reports⁹⁷, US tech has been given preferential access to politicians. Peter Kyle, the Labour technology secretary, met people from the US tech sector nearly 70% more often than his predecessor, Michelle Donelan, according to the *Guardian* – an average of more than one meeting every week with Google, Amazon, Meta, Apple etc.

What does the electorate want? AI is rarely a deciding factor in elections but a recent major

⁹³ The *AI Opportunities Action Plan* (supra n 20), contrary to previous documents, gives a surface impression of research into quantitative data. However, footnotes often reveal the contrary. For example, statements such as "Using AI assistants to do repetitive tasks better and faster, [thereby] freeing up to 20% of an employee's time" are often cited only as deriving from "Interview with business leader".

⁹⁴ Supra, n 26

⁹⁵ DSIT *Assuring a Responsible Future for AI*, 6 November 2024 at <https://www.gov.uk/government/publications/assuring-a-responsible-future-for-ai/assuring-a-responsible-future-for-ai#:~:text=A%20flourishing%20AI%20assurance%20ecosystem,billion%20to%20the%20UK%20economy.>

⁹⁶ Note also that attendance at the original AI Summit at Bletchley was so restricted that civil society was barely represented. In response, an "AI Fringe" was organised which continues annually. See <https://aifringe.org/2023>.

⁹⁷ <https://www.theguardian.com/technology/2025/may/14/labours-open-door-to-big-tech-leaves-critics-crying-foul> ; <https://www.theguardian.com/politics/2025/may/14/minister-accused-of-being-too-close-to-big-tech-after-analysis-of-meetings>.

survey showed that 72% of UK people feel that “laws and regulations” would increase their comfort with AI – an increase from 62% in 2022/23. 88% believed it was important that the government or regulators have the power to stop the use of an AI product if it is deemed to pose a risk of serious harm to the public and over 75% said government or independent regulators, rather than private companies alone, should oversee AI safety⁹⁸.

It is also worth noting that compared to big tech – mostly headquartered in the US – smaller AI companies in the UK have also felt marginalised from influence⁹⁹. SMEs, lacking in house legal advice, are often said to prefer legal predictability, than have to deal with navigating an unpredictable amorphous multi-regulator landscape. The interests of industries in the UK *other* than AI also seem to be being sacrificed without due diligence. The most obvious example here is the recent saga of the creative industries vs AI training; on paper at least, the UK’s revenues from creative industries, where it truly punches well above its size, dwarf what it receives from AI. These figures are contested: they include not only conventional “content” industries such as music and publishing but also software and games, which may be less affected by extractive AI scraping. Nonetheless the sheer weight of public support for writers and artists over foreign companies training AI without consent became obvious during the passage of DUAB¹⁰⁰.

Vertical regulator-managed systems vs horizontal comprehensive systems. If a light-touch soft-law “vertical” regime, run by various regulators is to succeed, careful thought must be given to the resourcing, training, skills, statutory powers, and sanctions available to each, as well as clear mechanisms for harmonisation of approach between regulators, and for accountability in outcomes. The ICO, eg, is well resourced with some excellent technical expertise, yet its enforcement record is questionable. Smaller poorer regulators like the EHRC are feeling the chill yet are vital to restraining AI driven discrimination in workplaces and elsewhere. In the AI safety domain, the UK AISI is, again, well-resourced and regarded as a major centre of technical expertise and experience, yet it has no statutory powers to demand access to models, or changes before market entry, and in a fast-changing world, may end up fundamentally toothless.

Regulator-driven schemes in the UK are also primarily *ex post*. DPIAs and Equality Impact Assessments do provide elements of *ex ante* control but they are not obligatory in many cases, do not need to be published and are often seen as “box ticking”. They are probably less comprehensive than the conformity assessment required of high-risk AI systems in the EU AIA, and the more far-reaching audits of the AISI (possibly: they are not made public) are only applicable to “frontier” AI when harms are more than likely to come from conventional ML systems.

In conclusion, it is salutary to compare the UK non-regime at one end of the spectrum, to the EU AIA’s detailed statutory model at the other. The central thrust of the EU AI Act employs a prescriptive, enumerated list of high-risk applications, with strict obligations tied to these specific use cases; the UK’s approach to risk assessment is allegedly more flexible, “agile” and principles-based – or on the other hand, amorphous and uncertain to invisible. The EU has established a horizontal, “top-down” comprehensive legal framework with a new central

⁹⁸ See study by Alan Turing Institute and Ada Lovelace Institute at <https://attitudestoai.uk/> ,

⁹⁹ Supra, n 97.

¹⁰⁰ See inter alia the success of the Make it Fair campaign and the activities of Fairly Trained <https://www.fairlytrained.org/about> .

authority, the European AI Office; the UK, conversely, has adopted a vertical, "bottom-up" approach, leveraging its existing network of sectoral regulators – yet failing in many cases, to provide adequate resources or statutory powers. The EU prioritises fundamental rights and safety as a baseline for market access, asserting that trust is a prerequisite for successful AI adoption. The UK, however, prioritises innovation as the key national objective and hopes, with little evidence, that successful money-saving or -making outcomes will (a) result and (b) reverse increasing loss of trust in AI.

The adaptability of each framework to rapidly evolving AI technology is a point of contention. The UK's non-statutory model is, generously, theoretically optimised for quicker adaptation to new AI developments. But in reality, when generative AI suddenly took off, the AI Act was able to negotiate a new approach with relative speed, even though its application-area approach was effectively torpedoed; while the UK decided that the risks around “frontier AI” were what finally require statutory underpinning. This seems paradoxical; as does the decision that putting in place guardrails for the most advanced AI, will instil public trust more effectively than legislating for immediate harms such as error and discrimination in public ADM, unfairness in AI hiring and promotion, and misinformation by hallucination, to name just a few. At root, the differing emphasis on innovation versus protection is a core philosophical divide based on faith not evidence. Each country will have to assess its own national character – or *volksgeist*¹⁰¹ - on that one.

¹⁰¹ The “spirit of the people” - a term associated with the Historical School and especially Friedrich Karl von Savigny.